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2026:PHHC:086966



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

**CRM-M-33043-2026
Decided On: 08.06.2026**

HARIOM NARAYAN ROY**....PETITIONER(S)****VERSUS****STATE OF HARYANA****....RESPONDENT(S)****CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL****Present:** Mr. Sube S. Kaushik, Advocate for the petitioner**SANDEEP MOUDGIL, J. (ORAL)****1. Prayer**

The jurisdiction of this Court has been invoked under Section 482 of the BNSS, 2023/438 Cr. P.C. for grant of anticipatory bail to the petitioner in FIR No.0048 dated 04.02.2026 under Section 406, 420, 506, 120-B IPC 1860 (under Sections 318, 316, 351 and 61 of the BNS, 2023 (BNS) registered at Police Station Tosham, District Bhiwani.

2. Contention**On behalf of the petitioner**

Learned counsel for the petitioner submits that the petitioner has been falsely implicated in the present case as the petitioner is not the signatory authority o the alleged agreement nor the account related to the petitioner in which the complainant has credited the amount. Further, the allegations in the FIR are primarily directed against the main accused, namely Harender Singh

Rautela and Jayanti Rautela, in relation to alleged investment and business transactions. The petitioner has been roped in casually, without any specific allegation of inducement, entrustment, misappropriation, or dishonest intention attributable to him. It is further submitted that, even as per the FIR, there is no allegation that any amount was ever transferred into the petitioner's account or that he executed any agreement with the complainant. The petitioner further submits that he is ready and willing to join the investigation and cooperate with the investigating agency.

Notice of motion.

On behalf of the State

On the asking of the Court, Ms. Mayuri Lakhanpal Kalia, DAG Haryana accepts notice on behalf of the respondent–State and vehemently opposes the prayer made by learned counsel for the petitioner on the ground that the petitioner had undertaken to collect the cheque from the main accused and to deliver the same to the complainant. It is further submitted that an amount of ₹80,000/- was also found to have been credited in the petitioner's bank account. On these grounds, it is argued that the petitioner does not deserve the concession of anticipatory bail.

3. Analysis

In the present case, learned State counsel has attempted to draw a distinction between the role attributed to the petitioner and that of the co-accused by contending that the petitioner had allegedly undertaken to collect the cheque from the main accused and deliver it to the complainant, but failed to honour the said assurance.

However, such contention, even if accepted, would not be fatal to the present petition, as a mere promise or assurance, without any corresponding act of inducement or wrongful gain, does not by itself establish criminal liability. It is possible that the petitioner may have made an effort in that regard, but the main accused may not have cooperated or agreed. In such circumstances, the petitioner cannot be fastened with criminal culpability solely on the basis of an unfulfilled assurance.

The petitioner has further undertaken in para 21 of the present petition that he is ready and willing to join the investigation and shall fully cooperate in its furtherance. Therefore, this Court finds no reason to decline the present petition.

4. Relief:-

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to his satisfaction. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.'

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

Pending application(s), if any shall disposed off, accordingly.

(SANDEEP MOUDGIL)
JUDGE

08.06.2026

NainaRajput

Whether speaking/reasoned : Yes/No

Whether reportable : Yes/No